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File No: ***EXPEDIENTE.1

RESOLUTION OF TERMINATION OF THE PROCEDURE BY VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following
BACKGROUND

FIRST: On April 18, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against DELPASO CAR HIRE, S.L.U. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No: ***EXPEDIENTE.1

IMI Reference: ***IMI.1

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following
FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint on June 22, 2022, with the data protection authority of France (Commission Nationale de l'Informatique et des Libertés). The complaint is directed against DELPASO CAR HIRE, S.L.U., with NIF B10915734 (hereinafter, DELPASO).

The reasons on which the complaint is based are as follows:

On May 4, 2022, the complainant reserved a car at the agency "DelPaso Málaga" and, on May 5, 2022, at 11:00 PM, when they went to pick it up, they were informed that the reservation had been denied due to annotations in their file. At that moment, the complainant requested to know what information was in their file, but it was not shown to them, claiming that such information was confidential for internal use.

On May 12, 2022, the complainant requested access to the information in their file from DELPASO via certified electronic letter without having received a response by the date of submission of their complaint.

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Along with the complaint, the following is submitted:

- A copy of a communication sent on May 12, 2022, to "DEL PASO CAR HIRE ***EMAIL.1, ***EMAIL.2, ***EMAIL.3, ***EMAIL.4," in which the complainant requests access to their personal data held in DELPASO's information systems within one month, in accordance with Articles 12 and 15 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data.
- A copy of the proof of a certified sending by EMAILAR (XXXXXX) sent by the complainant to "DELPASO Car Hire 2021 ***EMAIL.2 (professionnel)" on May 12, 2022, at 20:17:58 hours; as well as, a copy of the certification from EMAILAR (XXXXXX), certifying that as of May 28, 2022, at 00:00:00 hours, DELPASO had not accessed the communication.
- A copy of the proof of a certified sending by EMAILAR (XXXXXX) sent by the complainant to "DELPASO Car Hire 2021 ***EMAIL.4 (professionnel)" on May 12, 2022, at 20:17:58 hours; as well as, a copy of the certification from EMAILAR (XXXXXX), certifying that as of May 28, 2022, at 00:00:00 hours, DELPASO had not accessed the communication.
- A copy of the proof of a certified sending by EMAILAR (XXXXXX) sent by the complainant to "DELPASO Car Hire 2021 ***EMAIL.1 (professionnel)" on May 12, 2022, at 20:17:58 hours; as well as, a copy of the certification from EMAILAR (XXXXXX), certifying that as of May 28, 2022, at 00:00:00

hours, DELPASO had not accessed the communication.

- A copy of the proof of a certified sending by EMAILAR (XXXXXX) sent by the complainant to "DELPASO Car Hire 2021 ***EMAIL.5 (professionnel)" on May 12, 2022, at 20:17:58 hours; as well as, a copy of the certification from EMAILAR (XXXXXX), certifying that as of May 28, 2022, at 00:00:00 hours, DELPASO had not accessed the communication.

SECOND: Through the "Internal Market Information System" (hereinafter IMI), regulated by Regulation (EU) No. 1024/2012 of the European Parliament and of the Council, of October 25, 2012 (IMI Regulation), which aims to promote cross-border administrative cooperation, mutual assistance among Member States, and the exchange of information, the aforementioned complaint was transmitted on March 3, 2023, and was registered with the Spanish Agency for Data Protection (AEPD) on March 6, 2023. The transfer of this complaint to the AEPD is carried out in accordance with the provisions of Article 56 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (hereinafter, GDPR), having

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taking into account its cross-border nature and that this Agency is competent to act as the main supervisory authority, given that DELPASO has its sole establishment in Spain.

The data processing carried out affects individuals in several Member States. According to the information incorporated into the IMI System, in accordance with the provisions of Article 60 of the GDPR, it acts as an "interested supervisory authority," in addition to the data protection authority of France and the authority of the Netherlands. The latter by virtue of Article 4.22 of the GDPR, since the individuals residing in the territory of this supervisory authority are substantially affected or are likely to be substantially affected by the processing subject to this procedure.

THIRD: On March 24, 2023, in accordance with the then-current Article 64 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), the complaint submitted by the complainant was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to supervisory authorities in Article 57.1 and the powers granted in Article 58.1 of the GDPR, and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

1) On April 3, 2023, a written response to a request for information was received by this Agency (this request for information was accessed by DELPASO on March 24, 2022), submitted on behalf of DELPASO, with entry registration number ***REGISTRO.1, in which the following information was provided, among others:

- Indication that "In relation to the actions taken regarding the request (...), it should be noted that the knowledge we have had in this regard has been upon receipt of this request. As can be seen from the documentation attached to the file, the request is made to the email address: ***EMAIL.2, which corresponds to that of an intermediary wholesaler in contracting and not with the company I represent. However, having learned through this means of the existence of a request for information, we have immediately proceeded via email to provide all the information requested by (...) ***A.A.A. at the address provided ***EMAIL.6."

- A copy of an email written in French sent by ***EMAIL.5, on March 30, 2023, at 15:42 hours, to the complainant (***EMAIL.6). Its content is as follows (unofficial translation, the original in French):

"Through the mediation of the Spanish Agency for Data Protection, we have received a letter from you (addressed to the intermediary Discovecars) in which you request that we indicate the personal data that appears in our files and, to fully respond to your request for the right of access, we..."

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We inform you that the data we have is essential for formalizing the contract and fulfilling the obligations imposed on car rental companies without drivers by Spanish legislation, and corresponds to the following:

Name: A.A.A.

Address: ***ADDRESS.1

Contact phone number provided by you (***PHONE.1)

Email: ***EMAIL.6

We hope to have responded to your request for information and send you our sincerest regards.

Attached to the email is a copy of a document titled "CLIENT SHEET," which contains the following personal data of the claiming party: code, email, ID number, and country of issuance, driving license and country of issuance, country of birth, name, country, date of birth, habitual address, local address, phone number, and rental history (which includes 4 rentals).

- Copy of "INFORMATION DOCUMENT ON EXERCISING RIGHTS AND SECURITY BREACHES" in which section "2.- EXERCISING RIGHTS" indicates as a channel to exercise data protection rights a "Written request (you can request the forms: ***EMAIL.3)."

- Copy of the "Privacy Policy," which indicates that it was the one used on the date the claiming party requested the right of access. In its seventh section, "7. Exercising Data Protection Rights," it states, among other clauses, the following:

"Users may send a communication to the registered office of Delpaso Car Hire S.L.U. or to the email address ***EMAIL.3, including in both cases a photocopy of their ID or another similar identification document, to request the exercise of the following rights:

- Access to their personal data: you may ask Delpaso Car Hire S.L.U. if it is using your personal data. (...)"

2) On April 17, 2023, a query was made on the website ***URL.1 regarding the QR code that appears on the copy of the proof of a certified shipment by EMAILAR sent by the claiming party to "DELPASO Car Hire 2021 ***EMAIL.3 (professional)" on May 12, 2022, and presented by the claiming party (submitted to the AEPD by the CNIL). The following results were obtained:

- This QR code corresponds to the address ***URL.2, which directs to a page to verify the authenticity of documents certified by EMAILAR.

- The PDF document delivered by the CNIL as proof of a certified shipment by EMAILAR sent by the claiming party to "DELPASO Car Hire 2021 ***EMAIL.3 (professional)" on May 12, 2022, was verified, and the result was "Document non reconnu" [Unofficial translation: "Document not recognized"].

3) On April 17, 2023, a search was conducted regarding the business volume or activity of DELPASO in the Monitoriza service of Axesor, which states that the investigated entity is an active company of the type "Group subsidiary," for which no annual account data is available.

FIFTH: On March 18, 2024, the Director of the AEPD adopted a draft agreement to initiate sanctioning proceedings. Following the process established in Article 60 of the GDPR, on March 19, 2024, the aforementioned draft was transmitted through the IMI system, and the interested authorities were informed that they had four weeks from that moment to submit relevant and justified objections. The processing period for the proceedings was automatically suspended during these four weeks, in accordance with the provisions of Article 64 of the LOPDGDD.

Within the deadline for this purpose, the interested control authorities did not present relevant and justified objections in this regard, so it is considered that all authorities agree with the said draft decision and are bound by it, in accordance with the provisions of section 6 of Article 60 of the GDPR.

LEGAL GROUNDS

I

Competence and procedure

In accordance with the powers granted to each control authority by Article 58.2 and 60 of the GDPR and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish

Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary issues

In this case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, it is recorded that there is a processing of personal data, given that DELPASO collects and retains the following personal data of individuals: name, address, mobile phone, and email, among others.

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DELPASO carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, pursuant to Article 4.7 of the GDPR. Furthermore, this is a cross-border processing, given that DELPASO is established in Spain, although it provides services to other countries in the European Union.

On its part, Article 15 of the GDPR regulates the right of access of the data subject to their personal data.

III

Right of access of the data subject

Article 15 "Right of access of the data subject" of the GDPR states:

"1. The data subject shall have the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, where that is the case, access to the personal data and the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;
- c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations;
- d) where possible, the envisaged period for which the personal data will be stored or, if not possible, the criteria used to determine that period;
- e) the existence of the right to request from the controller rectification or erasure of personal data or restriction of processing of personal data concerning the data subject, or to object to such processing;
- f) the right to lodge a complaint with a supervisory authority;
- g) when the personal data have not been obtained from the data subject, any available information as to their source;
- h) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and at least in those cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

2. Where personal data are transferred to a third country or to an international organization, the data subject shall have the right to be informed of the appropriate safeguards pursuant to Article 46 relating to the transfer.

3. The controller shall provide a copy of the personal data undergoing processing. The controller may charge a reasonable fee based on the administrative costs for any further copies requested by the data subject. When the data subject makes the request by electronic means, and unless otherwise requested by the data subject, the information shall be provided in a commonly used electronic format.

4. The right to obtain a copy referred to in paragraph 3 shall not adversely affect the rights and freedoms of others."

In this case, it is recorded that on May 12, 2022, the complainant exercised their right of access before DELPASO through a certified electronic letter sent to the following email addresses: ***EMAIL.1,

***EMAIL.2, ***EMAIL.3, and ***EMAIL.4. As stated in the documentation provided by the complainant, both the submissions and the lack of access by DELPASO to the content of the communication were certified by the company EMAILAR on May 12 and 28, 2022.

For its part, DELPASO, after the information request from this Agency, granted access to the information requested by the complainant. This has been evidenced by the copy of the email dated March 30, 2023, provided by the entity being complained about, which includes as an attachment a copy of the "Client Sheet" where the following personal data of the complainant appear: code, email, ID number, and country of issuance, driving license and country of issuance, country of birth, name, country, date of birth, usual address, local address, phone number, and list of rentals (includes 4 rentals). However, it addressed the complainant's right of access almost a year after it was requested and only after the intervention of this Agency.

Regarding what DELPASO stated about "the request being made to the email address: ***EMAIL.2 which corresponds to that of a wholesale intermediary in contracting," this Agency wishes to point out that, as previously indicated, the complainant sent their request to 4 different email addresses. Among them is ***EMAIL.3, an address that appears as a means for exercising data protection rights before DELPASO in the "INFORMATION DOCUMENT FOR EXERCISING RIGHTS AND SECURITY BREACHES" and in the "Privacy Policy" provided by the entity itself.

Therefore, in accordance with the evidence available at this moment in the initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the known facts could constitute an infringement, attributable to DELPASO, for violation of Article 15 of the GDPR.

IV

Classification and qualification of the infringement of Article 15 of the GDPR

If confirmed, the aforementioned infringement of Article 15 of the GDPR could constitute one of the infringements classified in Article 83.5 of the GDPR which under the heading "General conditions for imposing administrative fines" states:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of..."

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total annual global turnover of the previous financial year, opting for the highest amount:

(...)

b) The rights of the interested parties pursuant to Articles 12 to 22; (...)"

For the purposes of the limitation period, Article 72 "Very serious infringements" of the LOPDGDD states:

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a limitation period of three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

k)

The hindrance or obstruction or repeated failure to address the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679

(...)"

V

Proposal for sanction for the infringement of Article 15 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement

committed by violating the provisions of Article 15 of the GDPR, allows for an initial administrative fine of €2,000 (two thousand euros).

VI

Imposition of measures

If the infringement is confirmed, in accordance with the provisions of the aforementioned Article 58.2.d) of the GDPR, whereby each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is noted that failure to comply with a possible order to adopt measures imposed by this agency in the resolution that concludes this procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of a further sanctioning administrative procedure.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against DELPASO CAR HIRE, S.L.U., with NIF B10915734, for the alleged infringement of Article 15 of the GDPR, classified in Article 83.5.b) of the GDPR.

SECOND: TO APPOINT B.B.B. as instructor and C.C.C. as secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the file, for evidentiary purposes, the documentation from the IMI that has led to the prior investigative actions, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the actions prior to the initiation of this procedure and the documentation from the IMI regarding the draft decision.

FOURTH: THAT for the purposes provided in Article 64.2 b) of the LPACAP, the sanction that may correspond would be an administrative fine of €2,000 (two thousand euros), without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to DELPASO CAR HIRE, S.L.U., with NIF B10915734, granting a hearing period of ten working days for them to submit allegations and present any evidence they deem appropriate. In their written allegations, they must provide their NIF and the procedure number that appears in the heading of this document.

If no allegations are made within the stipulated period regarding this initiation agreement, it may be considered a proposal for resolution, as established in Article 64.2.f) of the LPACAP.

In accordance with the provisions of Article 85 of the LPACAP, once a sanctioning procedure has been initiated, if the infringer acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

Likewise, as provided in said Article 85 of the LPACAP, they may acknowledge their responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a 20% reduction of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at €1,600 (one thousand six hundred euros), resolving the procedure with the imposition of this sanction.

Similarly, they may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will entail a 20% reduction of its amount. With the application of this reduction, the sanction would be set at €1,600 (one thousand six hundred euros) and its payment will imply

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the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for voluntary payment of the sanction is cumulative with the one that corresponds to be applied for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is

made within the period granted to submit allegations regarding the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to be applied, the amount of the sanction would be established at €1,200 (one thousand two hundred euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or appeal in the administrative route against the sanction.

In the event that you choose to proceed with the voluntary payment of either of the amounts indicated above (€1,600 or €1,200), you must make it effective by depositing it into account no. IBAN: ES00 0000 0000 0000 0000 (BIC/SWIFT Code: CAIXXXXXXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

You must also send the proof of payment to the General Inspection Subdirectorate to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve/six months from the date of the initiation agreement. After this period, it will expire, and consequently, the file of actions will take place; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, no administrative appeal can be made against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On April 24, 2024, the respondent has proceeded to pay the sanction in the amount of 1,200 euros making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the waiver of any action or appeal in the administrative route against the sanction and the acknowledgment of responsibility in relation to the facts referred to in the Initiation Agreement.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides the following:

- “1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely pecuniary or when a pecuniary sanction can be imposed along with a non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely pecuniary, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which will be cumulative. The aforementioned reductions must be determined in the notification of initiation of the procedure and their effectiveness will be conditioned upon the withdrawal or waiver of any action or appeal in the administrative route against the sanction. The percentage of reduction provided in this section may be increased by regulation.”

In accordance with the above,

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The Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of the procedure ***EXPEDIENTE.1, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to DELPASO CAR HIRE, S.L.U.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as stipulated by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and subsection 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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